File No.: EXP202306983 (PS/00152/2024)
RESOLUTION OF THE SANCTIONING PROCEDURE
From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND
FIRST: On 27/04/23, Mr. A.A.A. (the complainant or claimant) filed a complaint with the Spanish Agency for Data Protection.
The complaint is directed against the entity IBERDROLA CLIENTES, S.A.U. (IBERCLI) with CIF: A95758389 (the defendant or respondent), for the alleged violation of data protection regulations, Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).
The complainant states in his submission that his personal data is included in the credit information file at the request of the defendant, which he disagrees with as he was not given prior notice before the inclusion.
Along with the complaint, the following documentation is attached:
- Dated 11/04/23, a copy of the communication sent by ASNEF regarding the inclusion of his personal data in the solvency file, with a registration date of 11/04/23, at the request of IBERCLI and for a debt of €1,550.29.
- Dated 23/01/23, a certificate issued by the COMMUNITY OF OWNERS ***COMMUNITY.1, stating that: “Mr. A.A.A., DNI ***NIF.1, has been the owner since September 2, 2003, of the property located at ***ADDRESS.1.
SECOND: On 26/05/23, within the framework of file AT/02619/2023 and in accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the defendant for analysis and to inform this Agency, within one month, of the actions taken to comply with the requirements set forth in data protection regulations.
The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on 29/05/23 as evidenced by the acknowledgment in the file.
THIRD: On 17/07/23, the defendant submitted a response stating, among other matters, the following:
- That before this complaint was made, the complainant had already contacted the entity, at which point the decision made by IBERCLI was to investigate what had occurred, as a result of which it was confirmed that there was an internal manipulation of the meter confirmed in an authorized laboratory, such that it did not record the total consumption, leading to the conclusion that the inspection bill issued was correct.
- That in January 2023, a complaint (261071600) was received at Iberdrola in which the complainant expressed his rejection of the issued bill.
- That the complainant was notified (Annex 1) that the assessment of consumption was carried out in accordance with the provisions of Article 87 R.D. 1955/2000.
- That on 04/02/23, a notification was sent to the complainant (Annex 2), indicating that his bank had returned the receipt corresponding to the bill in question.
- That on 13/03/23, given that the non-payment situation persisted, a payment request was sent, indicating the possibility of his inclusion in the credit solvency file (Annex 3).
FOURTH: On 27/07/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.
FIFTH: On 10/08/23, the Director of the Data Protection Agency issued a resolution to archive the procedure AT/02619/2023, based on the lack of evidence of an infringement within the jurisdiction of the AEPD.
SIXTH: On 30/08/23, this Agency received a written appeal for reconsideration submitted by the complainant (RR/00635/2023), based on the following points:
- That the initial complaint to the AEPD alleged, among other issues, that the prior payment request notification for inclusion in the ASNEF file had not been made.

- That the defendant attached to the AEPD letters and notifications that had never been duly notified to him.
SEVENTH: On 28/11/23, the notification of the hearing procedure was carried out to the defendant so that they could argue whatever they deemed appropriate.
The forwarding, which was carried out in accordance with the rules established in the LPACAP, was received on 30/11/23 as evidenced by the acknowledgment in the file, but there is no record of any response from the defendant.
EIGHTH: On 21/03/24, the Director of the Data Protection Agency issued a favorable resolution of the appeal for reconsideration RR/00635/2023, based on the fact that the defendant had not demonstrated the effective sending of notifications by a reliable, auditable, and independent means to the complainant.

NINTH: On 24/04/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity IBERCLI, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a), as none of the bases for legitimacy provided in the aforementioned article had been substantiated, based on the fact that the entity had not demonstrated the effective sending of prior notification before inclusion in the solvency file by a reliable, auditable, and independent means.
In the opening agreement, it was determined that the sanction that could correspond, given the existing evidence at the time of the opening of the file, would amount to a total of 200,000 euros (two hundred thousand euros).
TENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the defendant submitted a written statement of allegations on 16/05/24, in which the following was stated:
“FIRST. – Regarding the communications conveyed concerning the debt: Firstly, this representation considers it essential to take into account that the complainant, as of 15/01/23, submitted an extension of the complaint previously made to IBERCLI, in which he confirmed the receipt in his email of the invoice dated January 13. In this regard, it is striking that the complainant confirms the receipt of the invoice in his email, but now claims that he has not been notified by IBERCLI of the communications and payment requests executed by my represented party to date, considering that these are made through the client area associated with the same email to which the invoice was sent. Annex No. 2 is attached, which contains the extension of the complaint filed by the complainant on 13/01/23.
Similarly, it should be noted that, as indicated in his complaint, the complainant, although aware of the debt, had no intention of paying the invoice that had been notified by IBERCLI, which is why he instructed the bank to reject the direct debit.
As argued in the relevant allegations submitted to the AEPD, on 04/02/23 a notification was sent to the complainant (Annex No. 3), indicating that his bank had returned the receipt corresponding to the invoice and informing him of the means through which he could make the payment. In addition to this communication, IBERCLI also proceeded to send this documentation to the complainant's email.
Given that the situation of non-payment persisted, on 13 March 2023, a payment request was sent, notifying him again of the debt in addition to indicating where and how to make the payment and expressly the consequences of not doing so (accrual of interest, possibility of debt communication in the ASNEF file, and possibility of legal actions), as can be verified in the certified letter XXXXXXXXXX Annexes No. 4 and 5.

In this regard, it is important to note that the certified letter has a record and notifications related both to the attempt to make the shipment and the notice of availability of the corresponding information to the sender. The fact that the Complainant has not collected it from the office does not imply that IBERCLI has not made the necessary efforts to communicate with the Complainant regarding the payment request.

Likewise, due to the non-payment of the debt by the Complainant, IBERCLI has sent the Complainant reminder emails from June 7, 2023, up to the date of submission of this document, informing them both of the amount owed and the specific instructions for making the payment.

For all these reasons, it can only be interpreted that the debt met and meets the legal requirements to consider the processing of personal data related to the breach of monetary obligations lawful, in accordance with the provisions of Article 20 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights.

SECOND. – Regarding the complaints filed by the Complainant: The Complainant states in their appeal about the lack of response from IBERCLI to the complaint. In this sense, this is also a false statement, as it was answered by IBERCLI on February 17, 2023.

In this regard, Annex No. 6 includes the responses sent to the complainant regarding the complaints filed, along with the corresponding email verification code.

THIRD. Conclusions: After the above, IBERCLI considers that it has sufficiently evidenced its diligent action at all times, with numerous communications made to the Complainant regarding the complaints submitted by them, as well as regarding the information related to the debt, and the prior notification of the payment request and its possible inclusion in the File, without being able to undermine the diligent nature.

For all the above, it can only be interpreted that IBERCLI has made all necessary efforts to communicate all due information prior to the inclusion of personal data in credit information files to the Complainant, and, considering the object of this request, there can be no interpretation of any non-compliance with the applicable data protection regulations.

For the above reasons, it is REQUESTED: That this document be presented and, in accordance with its content and prior to the appropriate procedures, take into consideration the information provided by this party regarding this file.

ELEVENTH: On 09/08/24, a resolution proposal was made in the sense that the Director of the AEPD proceed to ARCHIVE the present sanctioning procedure against the entity IBERDROLA CLIENTES, S.A.U. (IBERCLI) C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

with CIF: A95758389 in accordance with the provisions of Articles 63.3 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a). The notification of the aforementioned resolution proposal was made in accordance with the rules established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 12/08/24 as recorded in the file, and no response has been received to this resolution proposal document.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: It is recorded that the complainant is the owner of a property located at ***ADDRESS.1, as certified by the COMMUNITY OF OWNERS ***COMMUNITY.1, dated 23/01/23.

Second: It is recorded that communication was sent by the respondent with reference number XXXXXXXXXXX to the complainant, dated 13/03/23, to the address C/ ***ADDRESS.2 where they communicated a debt of 1,550.96 euros for non-payment of the electricity supply invoice at the address: C/ ***ADDRESS.1, with the warning of possible inclusion of the data in solvency files if the debt is not addressed.

Third: It is recorded that an attempt to notify the complainant was made by the respondent, through the certificate dated 03/04/23, issued by the State Postal Society, indicating that the shipment XXXXXXXXXX from IBERDROLA CLIENTES, accepted on 15/03/23 and addressed to A.A.A. Address: ***ADDRESS.2, was “Returned to Origin due to Surplus (Not collected at office)” on 03/04/23.

Fourth: It is recorded that the personal data of the complainant was included in the credit solvency file ASNEF with a registration date of 10/04/23, as stated in the certificate issued by the ASNEF-EQUIFAX entity.
Fifth: The complainant confirms that the ASNEF-EQUIFAX entity notifies them, at the notification address, of the inclusion of their personal data in the ASNEF credit solvency file, provided by the respondent.

LEGAL GROUNDS

I.

Competence

In accordance with the provisions of Articles 58.2 and 60 of the GDPR and the provisions of Articles 47, 48.1, 64.2, and 68.1 and 68.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.
Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures.”

II.

Presumption of Lawfulness

Article 4 of the GDPR defines, in its paragraphs 1, 2, and 11, the terms “personal data”; “processing” and “consent” as follows:
“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
“2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;
“11) ‘consent of the data subject’: any freely given, specific, informed and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”
For its part, Article 6.1 of the GDPR establishes the “lawfulness of processing” in the following terms:
“1. Processing shall be lawful only if at least one of the following applies: a) the data subject has given consent to the processing of their personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or of another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public

authorities in the exercise of their functions.
Therefore, the processing of data requires the existence of a legal basis that legitimizes it. Thus, Article 6.1 of the GDPR, in addition to consent, establishes other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the rights and fundamental freedoms of the data subject that require the protection of such data.
Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.
In this regard, the LOPDGDD, in its Article 20 establishes, regarding "Credit Information Systems," the following:
“1. Unless proven otherwise, the processing of personal data related to the non-compliance with monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:
a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate. The entity maintaining the credit information system with data related to the non-compliance with monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
d) That the data is only maintained in the system while the non-compliance persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.
e) That the data related to a specific debtor can only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or the affected party has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation of

consumer credit contracts and real estate credit contracts. When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved. f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the party who consulted the system shall inform the affected party of the outcome of said consultation.
2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, will be considered joint controllers of the data processing, being subject to the provisions of Article 26 of Regulation (EU) 2016/679. It will be the responsibility of the creditor to ensure that the requirements for the inclusion of the debt in the system are met, being liable for its non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where credit information is associated by the entity maintaining the system with additional information not contemplated in said paragraph, related to the debtor and obtained from other sources, in order to profile the debtor, particularly through the application of credit scoring techniques."

III.

In the present case, the responding entity states in its written allegations regarding the initiation of the file that, on 04/02/23, a notification was sent to the claimant indicating that their banking entity had returned the receipt corresponding to the electricity consumption invoice and that they were urged to regularize it. Given that the non-payment situation persisted one month later, on 13/03/23, a payment demand was sent indicating the possibility that their personal data could be included in solvency files if the non-payment situation continued. The responding entity attaches the following documentation for corroboration of the above:

- Dated 13/03/23, a copy of the letter sent by the responding entity to the claimant, with reference number XXXXXXXXX, to the address C/ ***ADDRESS.2, where they communicate the existence of a debt in the amount of 1,550.96 euros for non-payment of the electricity supply invoice at the address: C/ ***ADDRESS.1, and where the warning of the possible inclusion of the data in solvency files is included if the debt is not addressed before 23/03/23.
- Certificate dated 03/04/23, issued by the State Postal Society indicating that the shipment XXXXXXXXXXX, from IBERDROLA CLIENTES, accepted on 15/03/23 and addressed to A.A.A. Address: Cl ***ADDRESS.2, has been "Returned to Origin due to Surplus (Not collected at office)" on 03/04/23.

Aside from that, according to the communication sent to the claimant by the entity ASNEF-EQUIFAX, it is recorded that the claimant's personal data was included in the ASNEF solvency file on 11/04/23.

In this regard, as we have indicated previously, the LOPDGDD, in its article 20.1.c), establishes, regarding the requirement of prior payment demand, that unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the creditor has informed the affected party in the contract or at the time of demanding payment about the possibility of inclusion in such systems, indicating those in which they participate.

For its part, the STS of 20/12/22 (rec. 2737/22) analyzes the significance of article 20.1.c) of the LOPDGDD concerning the requirement of prior payment demand and states that:

"12.- Therefore, the fact that the current article 20.1.c) of Organic Law 3/2018 does not expressly establish the requirement of prior payment demand does not imply that the regulation of article 38.1.c of the regulation approved by Royal Decree 1720/2007 opposes or is incompatible with the new legal norm and must therefore be considered repealed. Moreover, the new legal norm contains a reference to the existence of such prior demand by providing that the warning of communication of the data to the file must be made either in that prior demand or at the time of entering into the contract. That reference, which did not exist in the previous law, implies that the new legal provision presupposes the necessary existence of such prior demand, which is one of the moments, along with the celebration of the contract, in which the creditor can warn the debtor of the communication of their data to the delinquent file in case of non-payment of the debt.

13.- The conclusion of the above is that the requirement of prior payment demand, as provided in article 20.1.c of Organic Law 3/2018, remains enforceable, the function and justification of which have been expressed by this chamber in numerous judgments (among the latest, judgment 604/2022, of September 14): it prevents the data of individuals who, due to a simple oversight, a banking error to which they are unrelated, or any other circumstance of similar nature, have ceased to meet a due and enforceable monetary obligation from being included in these records, so the data of non-payment is not relevant for assessing their solvency. What is not essential with the new regulation is that in that

payment demand, there is a warning about the possibility of including their data in a delinquent file in case of non-payment, as that warning may have been made at the time of contracting. (…)
16.- In conclusion, we can affirm that in the new legal regime there are three distinguishable obligations: i) The creditor must inform the affected party, in the contract or at the time of demanding payment, about the possibility of inclusion in such systems, indicating those in which they participate (article 20.1.c), first paragraph, of Organic Law 3/2018, which repeals article 39 of the regulation approved by Royal Decree 1720/2007, as this...

required that the information be provided cumulatively at both times). ii) The creditor, or anyone acting on their behalf or interest, must demand payment from the debtor prior to the communication of their data to the debtors' file (Article 38.1.c of the regulation approved by Royal Decree 1720/2007) and must keep sufficient documentation available for the data controller and the Spanish Agency for Data Protection that proves compliance with this requirement and the others required by the applicable regulations, in accordance with Article 38.3 of said regulation. iii) The entity maintaining the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period (Article 20.1.c], second paragraph, of Organic Law 3/2018). The notification must be made through a reliable, auditable, and independent means from the notifying entity, which allows them to prove the effective completion of the deliveries (Article 40.3).
In the present case, the respondent, along with the written allegations regarding the initiation of the file, presents a copy of the communication sent to the claimant dated 13/03/23, where they inform him of a debt amounting to 1,550.96 euros for non-payment of the electricity supply invoice and with the warning of the possible inclusion of the data in the solvency files if the debt is not addressed before 23/03/23. A certificate issued by the State Postal Society is also provided, indicating that said letter was returned to the sender due to being unclaimed, having left a notice in the claimant's mailbox indicating who the sender was. That is, it was returned to the sender after it was not possible to notify the interested party due to their absence and not having picked it up from the post office within the time allowed for that purpose.
The respondent certifies that they sent the demand to street ***ADDRESS.2 and states that they sent other writings to that address. The notification of inclusion was presumably sent to that same address because it is the one to which the creditor sends the writings and which should have been provided to the manager of the solvency file ASNEF for the inclusion of the claimant's personal data, noting that the notification of inclusion, which was later made by ASNEF, was collected by the claimant at that address.
The claimant has not alleged that the address was incorrect but simply that he did not receive the writings from the respondent. Furthermore, it is noted that the postal service did not return the letter as "unknown" but for not having been picked up from the "List" service during the time it was available to the claimant, without him having alleged any impediment for its withdrawal from the postal "List" service.
In this case, it must be understood that the attempt to notify was made at a suitable address and therefore, the prior demand for payment was made correctly, as it cannot be left to the will of the debtor required the receipt and knowledge of the content of the notification, as stated by the Provincial Court of Valladolid in its judgment No. 147/2022, of April 25, 2022.

The personal data of the claimant were included in the ASNEF solvency file on 11/04/23, and in this regard, it should be noted once again that the claimant acknowledges that the ASNEF-EQUIFAX entity, on 27/04/23, notified him by ordinary mail of his inclusion in the solvency file.
Therefore, in accordance with the evidence available, following the analysis conducted on the documents submitted in this process by the parties, it can be confirmed that the entity IBERCLI has indeed complied with the requirement set forth in Article 20.1.c) of the LOPDGDD. Therefore, in light of the above,
IT IS RESOLVED:
FIRST: TO FILE the present sanctioning procedure against the entity IBERDROLA CLIENTES, S.A.U. with CIF: A95758389 in accordance with the provisions of Article 63.3 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a).
SECOND: NOTIFY: this resolution to IBERDROLA CLIENTES, S.A.U. In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.
Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
Mar España Martí
Director of the Spanish Agency for Data Protection.